

In opposition, Plaintiff argues that the allegation that he did not consent to Defendant leaving any foreign object inside his body is sufficient to allege medical battery claim. Plaintiff argues that the determination as to whether a substantially different medical procedure was performed is a factual question unsuitable to be determined on demurrer, citing *Kaplan v. Mamelak* (2008) 162 Cal.App.4th 637, 647 [holding that whether a surgery is substantially different is a factual question not capable of being decided on demurrer] and *So v. Shin* (2013) 212 Cal.App.4th 652, 669 [holding that whether the contact fell within the scope of consent was a factual question for the finder of fact and not properly decided on demurrer]. However, Plaintiff's reliance on each of these cases is misplaced.

In *Kaplan*, the patient gave permission to the surgeon to operate only on a specific spinal disk (i.e., T8-9). (*Kaplan, supra*, 162 Cal.App.4th at p. 645.) The *Kaplan* court held that the surgeon may have committed battery by operating on the T6-7 and T7-8 disks when he did not have permission to operate on any disk other than T8-9. (*Id.* at p. 646.) Here, *Kaplan* is distinguishable because, here, Plaintiff did not specifically impose limitations as to the specific location within his body as to where the surgery was to be performed. Further, Plaintiff does not allege that Defendant performed the surgery at a different location on his body.

In *So*, the patient was admitted to a hospital following a miscarriage and the patient awoke during a procedure because she was administered insufficient anesthesia. (*So, supra*, 212 Cal.App.4th at p. 657.) The patient alleged that the anesthesiologist committed assault and battery during a postoperative interaction where the anesthesiologist attempted to persuade plaintiff not to report that plaintiff had awoken during surgery. (*Id.* at p. 670.) The patient alleged that the anesthesiologist's menacing conduct, of making movements to bring a container containing blood and other materials closer to Plaintiff's face, and her subsequent touching of Plaintiff's hands, arms, and shoulder were not consented to, either expressly or impliedly. (*Id.* at p. 671.) As such, *So* is distinguishable the *So* defendant's conduct occurred outside the scope of a medical procedure.

Here, by contrast, Plaintiff alleges no different procedure, no unauthorized surgery, and no treatment of a different body part. Plaintiff's allegations concern the manner in which the authorized medical procedure was performed, and not the performance of a substantially different medical procedure. Thus, the Court would sustain the demurrer as to this cause of action.

16. *Just N Time Trucking LLC v. Eaton Cummins Auto. Trans. Tech.*, Case No. CIVSB2503409
Defendant's Demurrer to Third Amended Complaint
8/24/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **SUSTAIN**, without leave to amend.

Case Summary

This is a breach of warranty case. Plaintiff alleges that it purchased a 2019 commercial truck in October of 2018. Defendant sold the truck. Plaintiff further alleges that the sale included a warranty on the transmission for 60 months or 750,000 miles. However, Plaintiff asserts the truck was delivered with serious transmission defects. As such, it initially filed suit on February 3, 2025. The currently Second

Amended Complaint was sustained on demurrer on April 12, 2026. This operative Third Amended Complaint (TAC) was filed on May 12, 2026. Defendant demurrers once again.

Analysis

The parties do not dispute that the four-year statute of limitations applies. (Com. Code § 2725(1).) In addition, “A cause of action accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Com. Code § 2725(2).)

Delayed Discovery – While not precisely articulated as delayed discovery, Plaintiff contends that it did not discover the transmission defects until April 2022 in Oklahoma. Plaintiff’s opposition does not contain any statutory or other legal authority to support any of its arguments, including this one that appears to invoke the delayed discovery doctrine. A point merely asserted without any authority for the proposition is deemed without foundation and requires no discussion. (*Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1281.)

Moreover, examining the progression of Plaintiff’s allegations about when it discovered the transmission defects yields unexplained discrepancies. In the original Complaint, there are no allegations of delayed discovery. In the FAC and SAC, Plaintiff alleges: “Plaintiff took reasonable steps to notify Eaton Cummins within a reasonable time that the Transmission was not as represented per the warranty beginning February 2020 at Rush Truck Centers in Fontana, Arizona and 2022 in Oklahoma, and continuing to the present day.” (FAC, ¶19; SAC, ¶19.)

Now in the operative TAC, Plaintiff alleges the defects to the Transmission became apparent in or about April of 2022. (TAC, ¶11.) Plaintiff then omits the allegations of notifying Eaton Cummins beginning February 2020, replacing it with an allegation of notification “beginning in or about April of 2022 at Rush Truck Centers in Oklahoma, and continuing to the present day.” (TAC, ¶16.) No explanation is provided for omitting the previous allegations that were contained in the verified FAC and verified SAC.

Plaintiff does not address how or why the sham pleading doctrine would not be applicable to the discovery allegations in the verified FAC and SAC. Moreover, Plaintiff does not supply any legal authority for its delayed discovery argument. As such, the court properly disregards it.

Equitable Tolling – Equitable tolling is a judicially created doctrine that, where applicable, would suspend or extend a statute of limitations to ensure fundamental practicality and fairness. (*Long v. Forty Niners Football Co.* (2019) 33 Cal.App.5th 550, 554-555.) The doctrine may apply in various scenarios, including where a first action, embarked upon in good faith, is found to be defective for some reason. (*Id.*, at p. 555.)

Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling. (*Long, supra*, 33 Cal.App.5th at p. 555.) A plaintiff seeking the benefit of equitable tolling must show three elements: (1) timely notice; (2) lack of prejudice to the defendant; and (3) reasonable and good faith conduct on plaintiff’s part. (*Ibid.*)

Regarding the time-barred requirement, the court's prior ruling on demurrer in April of 2026 concluded that the statute of limitations appears to have expired on the face of the complaint, which was filed originally in February 2025. (Tentative, filed April 16, 2026 [adopted].) As explained above, Plaintiff did not present any legally-supported argument for delayed discovery that would alter the court's conclusion. With the pleading time-barred on its face, the next issue is whether Plaintiff pleaded equitable tolling elements specifically.

Here, Defendant Eaton contends the TAC does not allege it had notice of, or participated in, the prior action against Eaton Corporation. The Court observes that its April 16, 2026, ruling on the SAC demurrer, where it explained there is no allegation that indicates how the instant Defendant – Eaton Cummins – was on notice by the interactions with Eaton Corporation.

In its opposition, Plaintiff does not address the three equitable tolling elements. Instead, Plaintiff argues obliquely that concepts of equity, fairness, and justice should apply, pointing to TAC allegations that for two years plus, it litigated its warranty breach claim against the wrong entity, Eaton Corporation, because it relied on its representation that it was the correct defendant. (TAC, ¶¶17-20.)

This argument is unpersuasive for two reasons. First, Plaintiff supplies no legal authority for this argument at all, or that this factual scenario qualifies as a defect in an initial lawsuit such that the equitable tolling doctrine would apply. Second, Plaintiff does not show the Court where in the TAC it pleads specific facts that would support equitable tolling, starting with timely notice to Defendant Eaton Cummins.
